



School Bus Safety Requirements

Australia • Brazil • Canada • China • England
Iceland • Mexico • Russia • United Arab Emirates

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Comparative Summary

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I. Introduction/Background

This report surveys technical requirements on school buses in the following select jurisdictions: **Australia, Brazil, Canada, China, England, Iceland, Mexico, Russia, and the United Arab Emirates**. In addition to this summary, the report includes individual country surveys. A table of primary sources cited in the surveys is also provided.

As depicted on the map at page 3, of the surveyed jurisdictions, **Canada, Mexico, Russia, and the United Arab Emirates** have buses that are specifically manufactured for school transportation, whereas the remaining jurisdictions use ordinary buses, vans, cars, or other vehicles to transport students to and from school.

As shown on the map at page 4, **China, Russia, and the United Arab Emirates** have special legislation for school buses, while the remaining jurisdictions surveyed govern school buses or buses in general in their respective general vehicle legislation or regulations. **Australia, Canada, and Mexico** largely leave the regulation of school bus safety to the individual states of their respective jurisdictions, so safety requirements can differ within these countries.

II. Safety Requirements

Safety requirements for vehicles that transport school-aged children vary greatly among the countries surveyed. This report surveys whether the covered jurisdictions have special requirements for school buses or vehicles used to transport school students. Specifically, the country reports examine whether each jurisdiction requires seat belts (non-specific or three-point), fire suppression systems, event data recorders, automatic emergency braking systems, and electronic control systems.

A. Seat Belts

As depicted on Figure 1 on page 5, most of the jurisdictions surveyed require seat belts on buses that transport children, including **Brazil, China, England, Iceland, Russia, and the United Arab Emirates**. Of the jurisdictions that require seat belts, three-point seat belts are required in some cases. For example, **China** requires three-point belts for school bus drivers. The **United Arab Emirates** require three-point seat belts for school bus drivers and for passengers in buses transporting kindergarten students. **Iceland** requires three-point seat belts in service vehicles that weigh less than 3,500 kilograms (about 7,716 pounds). **England** requires three-point seat belts in new buses but does not require older buses to be retrofitted. **Russia** requires four-point seat belts to be used by all passengers and school bus drivers.

Of the surveyed jurisdictions, **Australia, Canada, and Mexico** do not require seat belts in school buses but leave this decision to their states. This has resulted in local pilot projects and rules on

requiring seat belts in both countries. For example, certain states in **Australia** are now requiring seat belts in specific situations, such as for buses driving on rural routes.

B. Fire Suppression Systems

Fire suppression systems are required in **China** and the **United Arab Emirates**, and in new buses in **England**. In addition, **Russia** requires fire extinguishers to be carried on buses transporting students. While not required by law or standard in **Australia**, fire suppression systems are being included as part of contractual requirements by some Australian states, requiring retrofitting of older buses. In **Iceland**, the heat generator of a fuel-powered heating system must be in a fireproof chamber, and flame-resistant materials must be used in public service vehicles.

C. Event Data Recorders

Event data recorders are required in **Russia**. It appears, event data recorders are not required in any of the other jurisdictions surveyed. However, tachographs are required in **Iceland**, and vehicle traveling data recorders are required in **China**.

D. Automatic Emergency Braking Systems

Automatic emergency braking (AEB) systems are now being required in new buses manufactured in or imported into **Australia**. **England** also requires new buses to include AEB systems. In **China**, buses longer than 11 meters must be equipped with AEB systems.

E. Electronic Control Systems

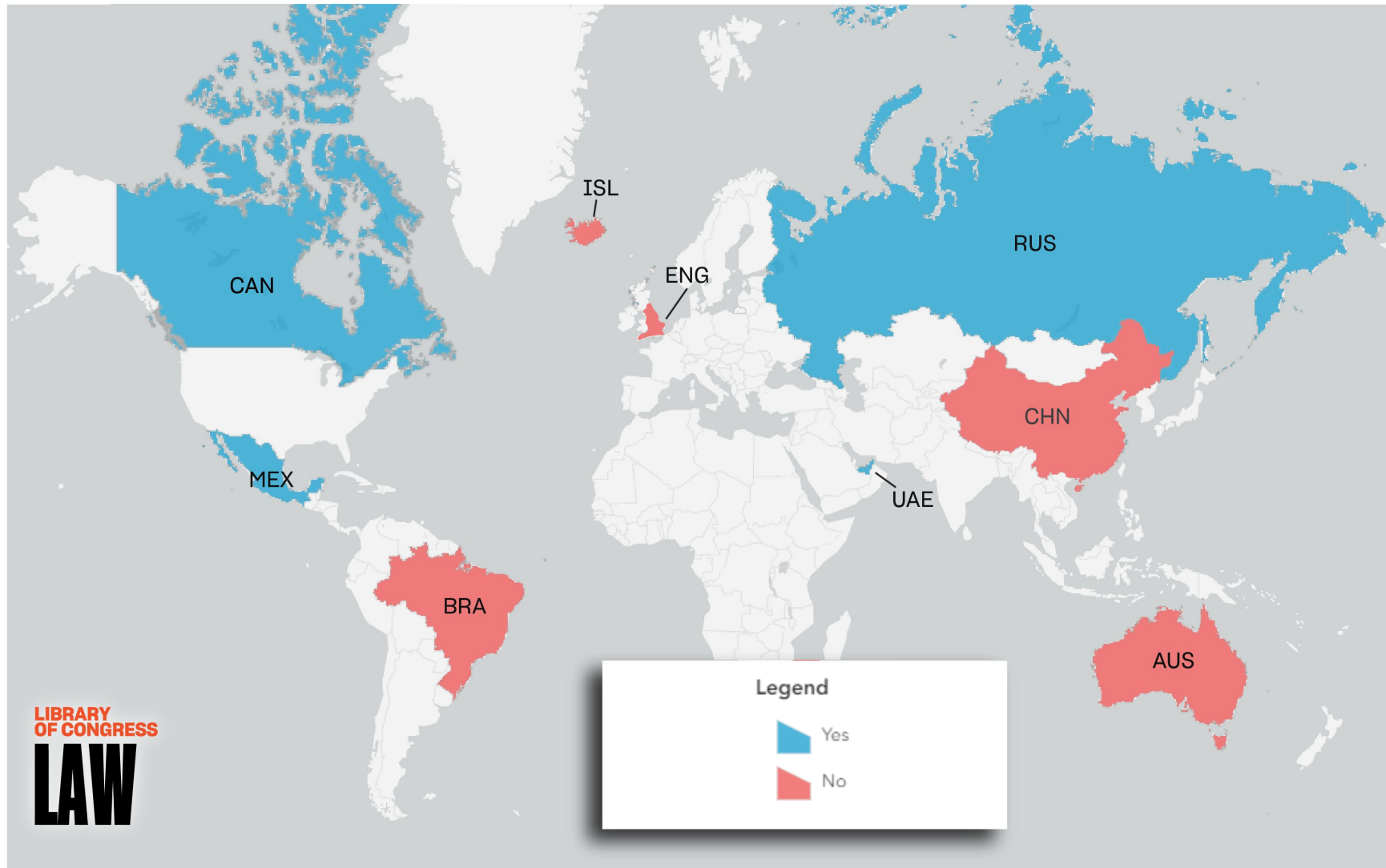
Electronic control systems (ECS) are required in all buses in **Russia** and in new buses in **Australia** and **Canada**. Buses in **England** must meet ECS requirements set forth in the United Nations Economic Commission for Europe Regulation 107.02.

III. School Bus Accidents and Fatalities

Most jurisdictions covered in this report do not provide official statistics regarding school bus accidents. However, recent local media reports or unofficial statistics are available in several jurisdictions. With respect to school bus fatalities, two fatalities were reported in **Brazil** in 2023, when a school bus was hit by a train. **Canada** reported one death involving a school bus between 2009 and 2018 and five fatalities over the four-year-period from 2017 to 2020. Other jurisdictions, such as **Iceland**, have not reported any recent school-bus-related fatalities. **Australia** does not provide statistics specifically concerning school bus accidents, but 15 fatalities related to buses of all types were reported from 2012 to 2021.

Although official statistics remain unavailable, **China** has reportedly suffered fewer accidents involving school buses following the adoption of school bus safety rules in 2012. **Russia** has reported 19 major accidents between the years of 2014 to 2019. Most accidents were reportedly due to the use of older vehicles or a failure to follow safety requirements. Local media in **Iceland** have reported several recent, nonfatal accidents involving school buses, generally related to weather conditions.

Jurisdictions with Buses Specifically Manufactured for School Use



Jurisdictions with Special Legislation for School Buses

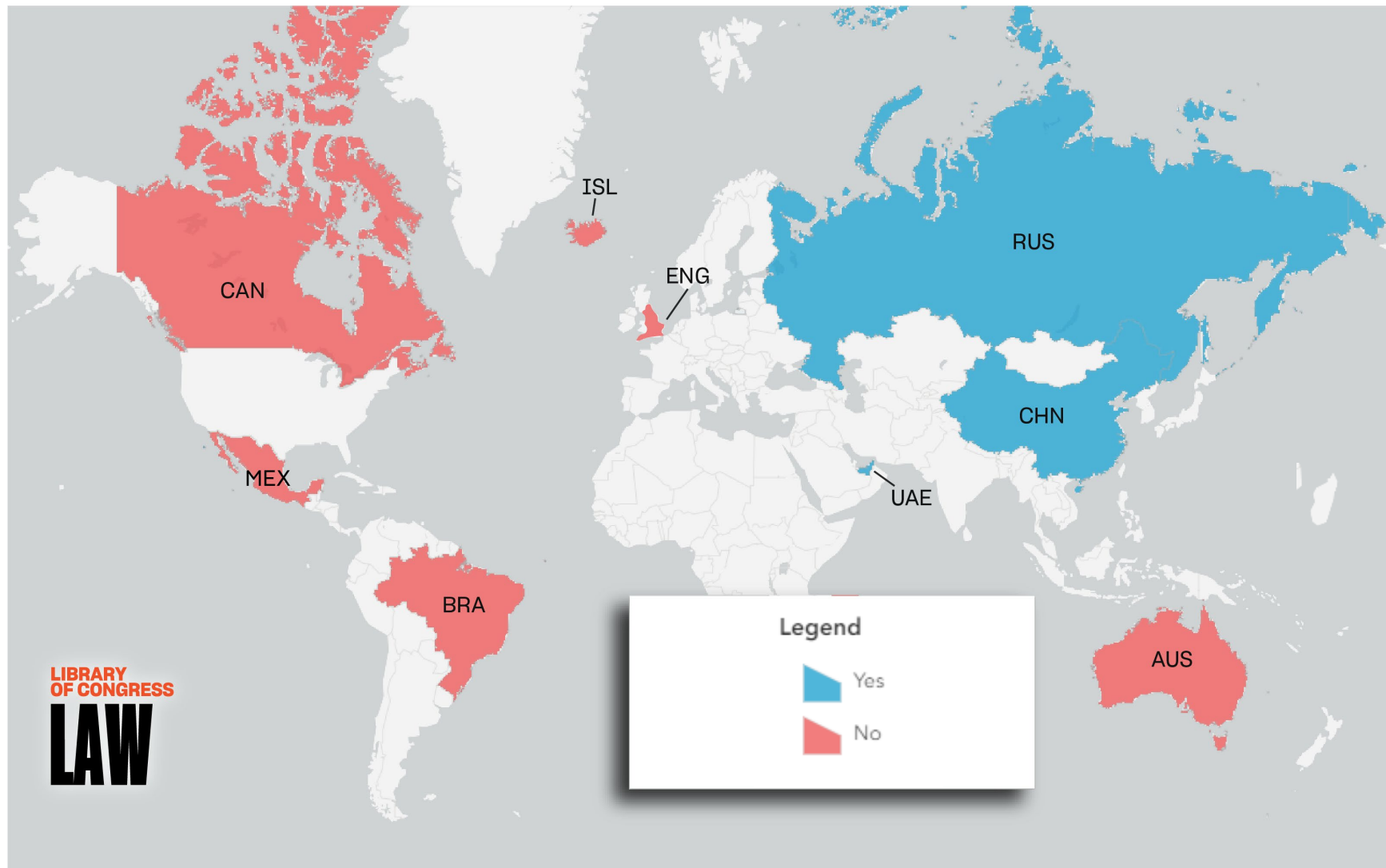
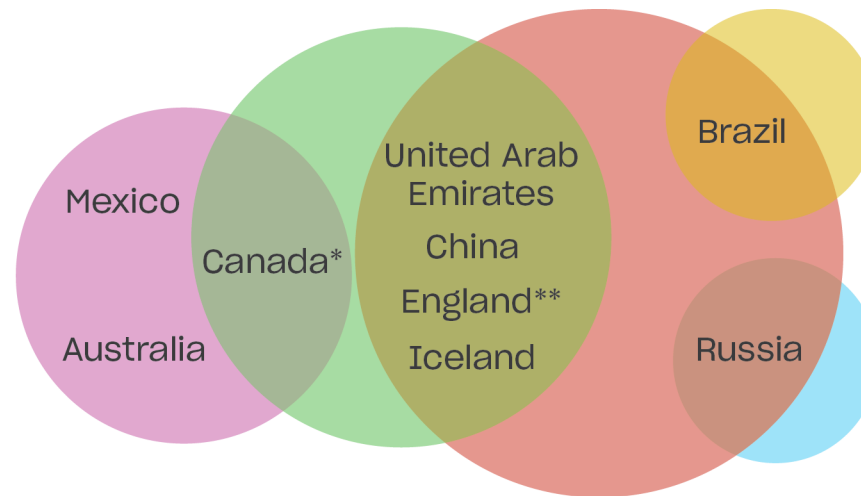


Figure 1: Seat Belt Requirements by Jurisdiction



Key:

- = Seat belts required
- = Three-point seat belts required
- = Three-point seat belts required in certain cases
- = Four-point seat belts required
- = Not required; may have separate state requirements

*Not required but
if present must be
three-point

**New buses only

Australia

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SUMMARY In Australia, national design rules apply to new and imported vehicles, including heavy vehicles. The rules for in-service vehicles are also largely harmonized through the implementation of the Heavy Vehicle National Law by most states and territories. Each state and territory may also set additional rules for school buses, including through contractual arrangements. In terms of safety features, new buses will be required to have Advanced Emergency Braking and Electronic Stability Control within the next year. Fire suppression systems are not required by law, but appear to be required under the school bus arrangements of some jurisdictions. Event data recorders are not required. Seat belts are not required by law for route service buses, including school buses, but some jurisdictions have moved to install them, particularly on school buses that service rural areas. There have been calls for expansion of the use of seat belts in light of recent bus accidents.

I. Introduction

In Australia, each jurisdiction has regulations, policies, and procedures related to school bus services and the requirements related to the safety and maintenance of buses (both generally and specifically for school buses).¹ In some jurisdictions, school buses are procured and operated by the government, while in others bus operators are contracted to provide school bus services, or there may be a mix of both. In some cases, school buses are only provided in certain areas. For example, school buses in Western Australia are mainly operated in “regional and remote” areas and for students attending Education Support Facilities. In major metropolitan areas, students travel at a concession fare rate on regular public transport.²

State and territory rules may reference or implement certain national level laws or model laws. In particular, all states and territories other than Western Australia and the Northern Territory have enacted laws implementing the model Heavy Vehicle National Law and associated regulations, which are administered by the National Heavy Vehicle Regulator.³ Other national level instruments include the federal Road Vehicles Standards Act 2018 (Cth)⁴ and Australian

¹ See, e.g., *School Bus Program*, Vic. Dep’t of Ed., <https://perma.cc/3J4J-KQEL>; Sth. Aus. Dep’t of Ed., *School Transport Policy* (Feb. 1, 2021), <https://perma.cc/KDD4-BFD3>.

² West. Aus. Public Transport Authority, *Student Transport Assistance Policy and Operational Guidelines* (June 2022), <https://perma.cc/B3H9-XFWL>.

³ *Heavy Vehicle National Law and Regulations*, National Heavy Vehicle Regulator (NHVR), <https://perma.cc/CM5K-USPG>; *Heavy Vehicle National Law*, National Transport Commission, <https://perma.cc/7RT9-3RLS>; *Laws and Regulations – Frequently Asked Questions: Heavy Vehicle National Law*, Transport for NSW, <https://perma.cc/8YYK-UK38>.

⁴ Road Vehicles Standards Act 2018 (Cth), <https://perma.cc/MLV8-QZP2>.

Design Rules (ADRs).⁵ The ADRs apply to new and imported vehicles,⁶ but they are also referenced in rules related to in-service vehicles. For example, the Heavy Vehicle (Vehicle Standards) National Regulation contains provisions stating when a heavy vehicle must comply with the ADRs, as well as various minimum requirements for such vehicles.⁷

II. Safety Equipment Requirements

A. Advanced Emergency Braking and Electronic Stability Control

In March 2022, the Australian government announced that two new ADRs mandating Advanced Emergency Braking (AEB) and Electronic Stability Control (ESC) for heavy vehicles would be introduced. For new models, these systems must be installed from November 1, 2023. For existing models already in circulation, the systems must be installed in new buses from November 1, 2024.⁸ The following ADRs will apply:

- ADR 97/00 – Advanced Emergency Braking (AEB) for Omnibuses, and Medium and Heavy Goods Vehicles.^[9] This will require all goods vehicles and buses above 3.5T GVM to be equipped with AEB
- ADR 35/07 – Commercial Vehicle Brake Systems.^[10] This ADR was revised to expand the requirement of vehicle stability functions of Electronic Stability Control (ESC) and roll over control to cover all buses and goods vehicles above 3.5T GVM. The previous version, ADR35/06, did not require ESC and anti-roll on goods vehicles not used as prime movers. This revision of ADR 35 was needed to support the adoption of ADR 97/00.¹¹

B. Fire Suppression Systems

It does not appear that fire suppression systems are required on buses by Australian national or state regulations. However, it appears that some jurisdictions are requiring them as part of their contractual arrangements with operators. For example, in New South Wales (NSW), a 2018 report on bus fires states that a project for retrofitting all private operator buses covered by the metropolitan and outer metropolitan bus operators' contract was completed in September 2017,

⁵ See *Australian Design Rules*, Dep't of Infrastructure, Transport, Regional Development, Communications and the Arts (DITRDCA), <https://perma.cc/V7UH-F35K>.

⁶ *Motor Vehicle Standards Laws*, DITRDCA, <https://perma.cc/NL39-82G8>; DITRDCA, *M – Category Passenger Vehicles: Applicability Summary*, *Australian Design Rules* (vers. 2.0, May 2023), <https://perma.cc/A3ZR-X96Y>.

⁷ Heavy Vehicle (Vehicle Standards) Regulation (Qld) pt 7 div 2, <https://perma.cc/82HJ-7CCT>.

⁸ Press Release, Kevin Hogan, Saving Lives with New Technology in Heavy Vehicles (Mar. 4, 2022), <https://perma.cc/THK5-F53N>.

⁹ Vehicle Standard (Australian Design Rule 97/00 – Advanced Emergency Braking for Omnibuses, and Medium and Heavy Goods Vehicles) 2022 (Cth), <https://perma.cc/RKC9-CWUK>.

¹⁰ Vehicle Standard (Australian Design Rule 35/07 – Commercial Vehicle Brake Systems) 2022 (Cth), <https://perma.cc/PDD8-V2EX>.

¹¹ *New Mandates for Emergency Braking Technologies to Come into Effect*, Big Rigs (Mar. 10, 2022), <https://perma.cc/CYU5-3UE6>.

and that “[a]ll NSW buses under TfNSW [Transport for NSW] contract are now fitted with engine bay fire suppression systems. All future buses supplied under these contracts will be delivered with engine bay bus fire suppression systems.”¹² In Western Australia, the School Bus Specifications state that, from July 1, 2014, “each Education Support, and wheelchair enabled Bus, must have installed an engine fire suppression system approved by the Authority. The system must comply with Australian Standard AS 5062:2016 (incorporating Amendment No 1).”¹³

C. Event Data Recorders

It does not appear that Event Data Recorders are required to be installed in any vehicles in Australia.¹⁴

D. Seat Belts

ADR 68 relates to occupant protection in buses and includes various requirements related to seat belts. However, this ADR does not apply to “route service omnibuses” or vehicles in which all passenger seats have a “reference height” of less than one meter.¹⁵

In all jurisdictions other than Western Australia, it appears that school buses are not required to have seat belts installed.¹⁶ However, under the rules of most jurisdictions, where there are seat belts on any buses, the occupants are required to wear them.¹⁷

In Western Australia, seat belts are compulsory on all school buses and must be worn.¹⁸ The Western Australia specifications for school buses state that “[a]ll seats on new school buses must be ADR 68 compliant seats (i.e. passenger and driver seats), fitted with lap-sash seat belts of a type approved by the Authority.”¹⁹

¹² Office of Transport Safety Investigations, *Bus Safety Report: Bus Fires in New South Wales in 2018*, at 23, <https://perma.cc/77MF-64B3>. See also *Rollout of Bus Fire Suppression Completed*, Transport for NSW (Aug. 30, 2017), <https://perma.cc/AR8C-8ZHV>.

¹³ West. Aus. Public Transport Authority, *School Bus Specifications* ¶ 1.3 (vers. 11, Dec. 2020), <https://perma.cc/Y37F-JGGM>.

¹⁴ See Prof. (Em.) Raphael Grzebieta, *Submission to the Joint Inquiry into Road Safety*, Joint Select Committee on Road Safety, Parliament of Australia 24 (Aug. 2021), <https://perma.cc/7ZMJ-DJJM>; Royal Australasian College of Surgeons, *Submission to the House of Representatives Joint Select Committee on Road Safety, Inquiry into Steps That Can Be Taken to Reduce Australia's Road Accident Rates, Trauma and Deaths on Our Roads* 4 (Feb. 2020), <https://perma.cc/CZ4G-P84G>.

¹⁵ Vehicle Standard (Australian Design Rule 68/00 – Occupant Protection in Buses) 2006 (Cth) r 2.2, <https://perma.cc/GA9U-7Q53>.

¹⁶ See *Seat Belts in Buses – The Law & Solutions (Carrier Duty of Care)*, SGESCO-MAX (July 10, 2023), <https://perma.cc/D4T5-E422>.

¹⁷ See id.; Millie Costigan, *Advocates Say Tougher Seat Belt Laws Could Prevent Harm*, Canberra Times (June 15, 2023), <https://perma.cc/SDY5-5ZZK>.

¹⁸ West. Aus. Public Transport Authority, *The Wearing of Seat Belts on a School Bus*, <https://perma.cc/EQH2-53CR>.

¹⁹ West. Aus. Public Transport Authority, *School Bus Specifications*, *supra* note 13, ¶ 1.2.

The availability of seat belts on school buses has been major topic of discussion in some jurisdictions in recent years. For example, in March 2022, the New South Wales (NSW) government said that “all dedicated school buses on rural and regional bus contracts in the state had been fitted with seatbelts as part of the \$237 million NSW Rural and Regional Bus Seatbelt Program, following concerns from parents about the safety of rural roads.”²⁰ This was among the 35 recommendations of the School Bus Safety Community Advisory Committee Report published in 2012.²¹ In August 2022, the government also decided to expand the project to outer metropolitan areas.²² However, seat belts are not installed in buses in metropolitan areas, with such buses switching between operating school runs and regular transport routes.²³ In June 2023, news media reported that some parents were pushing for seat belts on these buses, after 10 people died in a (non-school) bus crash in the Hunter Valley.²⁴ The article stated, as also indicated above, that “[u]nder Australian rules, buses classified as “route service buses”, which includes school services, or those with passenger seat backs less than one metre high, are not required to have seatbelts fitted.”²⁵

It was also reported, in May 2023, that Victoria is reviewing school bus seat belt rules after a school bus crash in Melbourne that led to 13 children being hospitalized. According to Public Transport Victoria, as of March 2023, “1,143 of 1,365 dedicated regional school buses across Victoria had been installed with seatbelts.”²⁶ It further stated that, currently, “while it was not proposed to alter existing legislation and policies about the use of seatbelts, once they were fitted on buses it was expected all children must wear them.”²⁷

III. Bus Accident Statistics

According to Australian government statistics, for the period 2012 to 2021

- There was a total of 15 people killed in crashes involving a bus. The trend over the last three years shows a reduction of 13.4 per cent per year . . .

²⁰ Madeleine Wedesweiler, *Seatbelt Laws Under Scrutiny After Two Bus Crashes. What Are the Rules?*, SBS News (June 13, 2023), <https://perma.cc/UB9M-V4HT>. See also *Seatbelts Installed on All School Buses in Regional and Rural NSW*, Steph Cooke MP (Mar. 17, 2022), <https://perma.cc/6D2K-J5Q8>; *Seatbelt Safety a Priority for Regional School Buses*, NSW Government (June 26, 2017), <https://perma.cc/GB77-ND4N>.

²¹ *Rural and Regional Seatbelt Program Taskforce*, Transport for NSW, <https://perma.cc/96LQ-JFL5>. See also School Bus Safety Community Advisory Committee, *Inquiry into School Bus Safety in Rural and Regional NSW* (Oct. 2012), <https://perma.cc/6939-T9PY>; Transport for NSW, *School Bus Safety Community Advisory Committee Recommendation Status – January 2017* (Jan. 31, 2017), <https://perma.cc/5A5H-GTP8>.

²² See *Seatbelt Rollout Extended to Selected Hunter School Buses*, Australasian Bus & Coach (Aug. 8, 2022), <https://perma.cc/B589-2AET>.

²³ Christopher Harris & Matt O’Sullivan, *Parents Demand Seatbelts Be Installed on Sydney School Buses*, Sydney Morning Herald (June 15, 2023; updated June 16, 2023), <https://perma.cc/MG6B-SR3D>.

²⁴ *Id.*

²⁵ *Id.*

²⁶ Benita Kolovos, *Victoria Considers Mandates on School Bus Seatbelts After Crash Leaves Children Severely Injured*, Guardian (May 17, 2023), <https://perma.cc/6VE4-BV3Q>.

²⁷ *Id.*

- Of the people killed in these bus-involved fatal crashes, approximately 11 per cent are occupants of the bus, 33 per cent are occupants of a light vehicle and 57 per cent are other road users
- Approximately 80 per cent of fatalities in crashes involving a bus occur in a Major City or Inner Regional area
- Approximately 254 bus occupants are hospitalised from crashes each year²⁸

The statistics did not specify the number of the accidents that involved school buses (or buses on school routes).

²⁸ DITRDCA, Bureau of Infrastructure and Research Economics, *Road Trauma Involving Heavy Vehicles 2021 Statistical Summary* iv (2023), <https://perma.cc/FW2S-5VLB>.

Brazil

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The Brazilian Traffic Code states that vehicles specially intended for the collective transport of schoolchildren may only circulate on the roads with authorization issued by the executive traffic body or entity of the States and the Federal District, and requires:

- I - registration as a passenger vehicle;
- II - semi-annual inspection to check mandatory and safety equipment;
- III - painting of a horizontal strip in yellow, 40 centimeters (15.75 inches) wide, at half height, along the entire length of the sides and rear of the body, with the SCHOOL sign, in black, and in the case of a vehicle with a painted body in yellow, the colors indicated here must be inverted;
- IV - unalterable instantaneous speed and time recording equipment;
- V - white, matte or yellow light lanterns arranged at the ends of the upper front part and red light lanterns arranged at the upper end of the rear part;
- VI - seat belts in a number equal to the vehicle's capacity;
- VII - other mandatory requirements and equipment established by the *Conselho Nacional de Trânsito*, CONTRAN (National Traffic Council).¹

The authorization must be posted on the inside of the vehicle, in a visible place, with an inscription of the permitted capacity, and it is prohibited for schoolchildren to board in numbers greater than the capacity established by the manufacturer.²

The following are mandatory items of vehicle equipment, among others to be established by CONTRAN:

- I - seat belt, in accordance with specific CONTRAN regulations, with the exception of vehicles intended for transporting passengers on routes where standing travel is permitted;
- II - for transport and school driving vehicles, passenger transport vehicles with more than ten seats and cargo vehicles with a total gross weight exceeding 4,536 kilograms (10,000 pounds), unalterable instantaneous speed and time recording equipment;³

¹ Código de Trânsito Brasileiro - Lei No. 9.503, de 23 de Setembro de 1997, art. 136, <https://perma.cc/ZSM5-C48H>.

² Id. art. 137. Article 143 defines category D as driver of a motor vehicle used to transport passengers whose capacity exceeds eight seats, excluding the driver's seat.

³ Id. art. 105.

CONTRAN is the coordinator of the National Traffic System and the highest regulatory and advisory body in the country.⁴ CONTRAN is responsible for, among other things, establishing the regulatory standards referred to in the Code and the guidelines of the National Traffic Policy.⁵

Resolution CONTRAN No. 993 of June 15, 2023, establishes the safety equipment for the fleet of vehicles in circulation and lists the applicable vehicle safety regulations index.⁶ Resolution CONTRAN No. 959 of May 17, 2022, establishes safety requirements for passenger transport vehicles, minibuses, and buses in general,⁷ including 3-point safety belts.⁸

Other than fire extinguishers,⁹ these resolutions do not have specific safety requirements for school buses and are silent regarding automatic emergency braking systems, event data recorders, electronic stability control systems, and fire suppression systems.

Although no official data on crashes involving school transportation vehicles was located, the media has reported accidents throughout the country. In February 2023, 19 children and adolescents got hurt when the microbus they were traveling in crashed with a bus;¹⁰ in March, two children died when their school bus crashed with a train;¹¹ and, in August, 10 other children were hurt when their school bus collided with a truck.¹²

⁴ Id. art. 7(I).

⁵ Id. art. 12(I).

⁶ Resolução CONTRAN No. 993, de 15 de Junho de 2023, art. 1, <https://perma.cc/ZH5P-LVRA>.

⁷ Resolução CONTRAN No. 959, de 17 de Maio de 2022, <https://perma.cc/G8KW-J2B4>.

⁸ Id. Anexo V, <https://perma.cc/WG5A-4SG2>.

⁹ Resolução CONTRAN No. 919, de 28 de Março de 2022, <https://perma.cc/93Z6-PJ8K>.

¹⁰ Daniele Oliveira, *Acidente com Micro-Ônibus de Transporte Escolar deixa 19 Crianças e Adolescentes Feridos em Rio Verde*, g1 (Feb. 2, 2023), <https://perma.cc/5E2F-YHZ8>.

¹¹ Thatiana Murillo, *Desastres com Ônibus Escolares: Até Quando?!*, mobilize brasil (Mar. 13, 2023), <https://perma.cc/6TZX-8K75>.

¹² *Ônibus Escolar com 25 Crianças se Envolve em Acidente com Caminhão na BR-277, em São José dos Pinhais*, g1 (Aug. 21, 2023), <https://perma.cc/87E9-D48U>.

Canada

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SUMMARY Federal motor vehicle safety standards regulate safety requirements for buses. In addition, the majority of provinces require that school buses be built to the Canadian Standards Association (CSA) standard D250. Three-point seat belts on school buses are optional and regulations on automatic emergency braking are currently under review. Electronic stability control (ESC) systems are required on large school buses.

I. School Bus Safety Equipment/Measures

In Canada, school bus safety is a “shared responsibility” between federal and provincial/territorial governments.¹ Under the Motor Vehicle Safety Act², Transport Canada is “responsible for establishing the Canada Motor Vehicle Safety Standards, which includes specific safety requirements for buses.”³ The standards⁴ regulate

body joint strength, rollover protection, structural integrity, bus window retention, release and emergency exits requirements, as well as pedestrian safety devices, brake systems and stability control. In addition, similar to other classes of vehicles, school buses are required to meet requirements for lighting, tires, wheels, mirrors and other safety equipment.⁵

These Canadian Motor Vehicle Safety Standards apply to school buses in Canada, as follows:

School bus pedestrian safety devices (CMVSS 131)

- School buses are required to be equipped with at least one stop signal arm
- A stop signal arm helps control traffic when a school bus is stopped during pick up and drop off
- The stop signal arm must have flashing lights and operate when the bus is stopped to pick up and drop off children

Rollover protection (CMVSS 220)

- Limits the possibility of a roof collapsing in a rollover

¹ *Appearance at TRAN: Supplemental Mandate Letter and on the pre-entry testing requirements: School Bus Safety*, Transport Canada, (Feb. 3, 2021), <https://perma.cc/9T9J-JZNT>.

² Motor Vehicle Safety Act, S.C. 1993, c. 16, <https://perma.cc/W2P6-KBFC>.

³ *Appearance at TRAN*, *supra* note 1.

⁴ *Safety Standards for School Buses*, Transport Canada, <https://perma.cc/VSN6-BZUK>.

⁵ *About School Bus Safety in Canada*, Transport Canada, <https://perma.cc/VM5G-HC7W>.

- Requires school bus roofs to have a certain amount of strength if a force one and a half times the weight of the school bus is applied to the roof of the school bus

School bus body joint strength (CMVSS 221)

- Helps prevent body joints from coming apart in a collision (which could cause sharp edges to enter the bus's interior)
- Requires school bus body joints to have a certain amount of strength
- A pulling force is applied to a test sample of each body joint

School bus seating and crash protection (CMVSS 222)

- Provides occupant protection through compartmentalization which can be complemented with proper use of seat belts
- Requires compartmentalization – high seat backs, padded with energy-absorbent material and spaced closely together
- Sets a minimum seat back height
- Requires performance tests for seats
- Requires seat belts to meet certain standards, if they are installed on a school bus
- Allows for either fixed or flexible seat belt configuration, based on the size of passengers
- Permits only 3-point lap and shoulder belts, which need to meet requirements similar to seat belts in other vehicles

Mirrors and rear visibility systems (CMVSS 111)

- Helps the driver see children who are close to the bus during drop off and pick up
- Requires school bus-specific mirrors
- Prescribes specific mirror types and tests field of view

Lighting systems and reflective devices (CMVSS 108)

- Helps control traffic during on-route stops
- Requires school buses to have flashing lighting systems
- Lights must operate when the bus is stopped to pick up or drop off children

Bus window retention, release and emergency exits (CMVSS 217)

- Requires: window retention
 - helps with compartmentalization by making sure no openings are made in the bus by a window coming out
 - windows are required to stay in their window frame when a force is applied to the window
- Requires emergency exits, including side emergency exits, the large rear door and roof hatch
 - help passengers exit quickly in emergencies by setting the number, size and location of emergency exits in a school bus

Fuel system integrity (CMVSS 301)

- Reduces risks associated with fuel leaks or fuel system failure in a crash
- Requires crash testing of all school buses
- Sets maximum fuel leakage and system integrity requirements after crash tests

Liquid propane gas and compressed natural gas fuel system integrity (CMVSS 301.1 and 301.2)

- Reduces risks associated with fuel leaks or fuel system failure in a crash
- Requires crash testing of all school buses (other vehicles may follow installation requirements instead of crash testing)
- Sets maximum fuel leakage, minimum fuel system pressure loss and system integrity requirements after crash tests⁶

In addition, the majority of provinces “require that school buses be built to the Canadian Standards Association (CSA) standard D250”⁷ which “enhances the safety of the school buses with such features as enhanced emergency exits, mirror and lighting systems to observe students in the danger zone, front crossing gate, and the distinctive chrome yellow colour to improve the visibility of the bus to other motorists.”⁸

In July 2018, Transport Canada published “regulations for the optional installation of three-point seatbelts on school buses.”⁹ “At present, the decision rests with owners/operators and school boards, together with provinces and territories, to determine whether to install them.”¹⁰ In 2020, the federal government and British Columbia partnered to launch a pilot project to use three-point seat belts in school buses in two school districts.¹¹

On February 14, 2020, the Federal, Provincial, Territorial Council of Ministers responsible for Transportation and Highway Safety released a report by the Task Force on School Bus Safety, “recommending the pursuit of a series of measures to strengthen school bus safety” including automatic emergency braking.¹² Currently proposed regulations are under review by Transport Canada.¹³

⁶ *Safety Standards for School Buses*, supra note 4.

⁷ Id.

⁸ *Vehicle Design and Construction*, School Bus Ontario, <https://perma.cc/UP4D-ENAK>.

⁹ *School Bus Safety*, Transport Canada, <https://perma.cc/27RV-V42U>.

¹⁰ Id.

¹¹ *Canada and British Columbia Launch School Bus Seatbelt Pilot Project*, Radio Canada International, (Sept. 11, 2020), <https://perma.cc/NFY7-TP7B>.

¹² *Appearance at TRAN*, supra note 1.

¹³ *Road Safety Initiatives Planned for April 2023 – April 2025*, Transport Canada, <https://perma.cc/9GDL-N587>.

In 2017, electronic stability control (ESC) systems were required on large school buses.¹⁴ ESC is mandatory “on all cars, SUVs, pickups, minivans, heavy trucks and buses from 2012 model year.”¹⁵

II. School Bus Crash Statistics

According to the Canadian Motor Vehicle Traffic Collision Statistics: 2021 report by Transport Canada, there were five school bus occupant fatalities involving school buses between 2017-2021.¹⁶ Information from 2020 states that “[f]atalities on school buses account for less than 0.1% of all motor vehicle-related fatalities in Canada. In the last decade, between 2009 and 2018, there was 1 school bus passenger fatality on Canadian roads.”¹⁷

¹⁴ *About School Bus Safety in Canada*, supra note 5.

¹⁵ *Electronic Stability Control*, Transport Canada, <https://perma.cc/7UX8-E7CV>.

¹⁶ *Canadian Motor Vehicle Traffic Collision Statistics: 2021*, Transport Canada, <https://perma.cc/4DGU-YUP3>.

¹⁷ *About School Bus Safety in Canada*, supra note 5.

China

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In China, providing transportation for children to and from school is not as common as it is in the United States. For schools that do provide school buses, the School Bus Safety Regulations, which were promulgated by the State Council in 2012, apply.¹ All school buses are required to be licensed in accordance with the regulations; those carrying primary school students must be designed and manufactured in accordance with relevant national standards.² The national standard on school bus safety was also issued in 2012.³

Under the national standard, the student seats are required to be equipped with two-point safety belts, while the driver's seat must be equipped with a 3-point safety belt.⁴ Fire suppression systems are also required. For example, school buses must be equipped with fire extinguishers weighing at least 2 kilograms, with one located near at least one of the caregiver seats and one near the driver's seat.⁵

The school bus safety standard does not appear to require school buses to be equipped with event data recorders, automatic emergency braking (AEB) systems, or electronic control systems. The standard requires school buses to be equipped with vehicle traveling data recorders that comply with the relevant national standard.⁶ In addition, the national standard on the safety of vehicles requires all buses longer than 11 meters to be equipped with AEB systems.⁷

Although official information on school bus accidents is not available, prior to the passage of the School Bus Safety Regulations in 2012, there were reportedly many traffic accidents involving primary and secondary school students across the country. As of 2021, the casualties involving children under 15 years old had dropped significantly, according to a domestic news report.⁸

* Yuechao Nie, foreign law intern at the Law Library of Congress, contributed to this report.

¹ School Bus Safety Regulations (promulgated by the State Council on Apr. 5, 2012), <https://perma.cc/5UJ9-EZDY> (in Chinese).

² Id. art. 2.

³ General Administration of Quality Supervision Inspection and Quarantine (AQSIQ) & Standardization Administration of China (SAC), *GB 24407 – 2012: The Safety Technique Specifications of Special School Buses* (Apr. 10, 2012), <https://perma.cc/RED5-ADS3> (in Chinese).

⁴ Id. § 5.10.5.1.3.3.

⁵ Id. § 5.12.6.2.

⁶ Id. § 5.15.

⁷ AQSIQ & SAC, *GB 7258 – 2017: Technical Specifications for Safety of Power-Driven Vehicles Operating on Roads* (Sept. 29, 2017), <https://perma.cc/6YQ3-G4Z3>.

⁸ *Review Ten Years of Development of Chinese School Buses; Country's First School Bus Safety Initiative "Declaration of Zero" Released*, JRJ.com (July 8, 2022), <https://perma.cc/X62Y-H6PZ> (in Chinese).

England

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SUMMARY There are no designated school buses provided to transport children to school in England and the majority of children walk to school if they live within a certain radius of the school. While there are no designated school buses, local authorities in charge of education have a duty to provide free, sustainable transport to eligible children. The vehicles used to transport eligible children may vary and when buses are used, they are considered to be public service vehicles and must meet certain safety requirements, which also vary according to when the bus was either first used or manufactured. The safety requirements include the provision of three-point seat belts for all buses first used from October 1, 2001.

I. Introduction

The Education Act 1996 gives local authorities a duty to provide sustainable free school transport to eligible children, as well as discretionary power to provide transport for children who do not meet the criteria of being an eligible child.¹

There are no specific school buses in England, and most children are expected to walk to school if they live within a two-mile radius for those under eight years of age and a three-mile radius for those eight years of age and older.² Where local authorities provide free transport to eligible children, the vehicles used may vary, and when buses are used by local authorities for transportation, they are considered to be public service vehicles and must meet the safety requirements of these vehicles.³

The Health and Safety at Work etc. Act 1974 requires local authorities to put in place measures that are reasonably practicable to protect the children they arrange travel for from harm.⁴ The Management of Health and Safety at Work Regulations 1999 provide that local authorities must identify hazards, assess the risk posed by hazards, and put in place proportionate measures to either eliminate the hazard or control the risk. These findings must be recorded and regularly reviewed.⁵

¹ Education Act 1996, c. 56, §§ 508A(1), 508B-C & sch. 35B, <https://perma.cc/DF5W-X28X>.

² Id. § 444(5).

³ Department for Education, *Travel to School for Children of Compulsory School Age: Statutory Guidance for Local Authorities* ¶ 79 (June 2023), <https://perma.cc/A6KC-NAU5>.

⁴ Health and Safety at Work etc. Act 1974, c. 37, § 2, <https://perma.cc/UL8N-5556>.

⁵ Health and Safety at Work Regulations 1999, SI 1999/3242, <https://perma.cc/8FPJ-KNJA>.

II. Required Safety Equipment

A. Seat Belts

Since February 10, 1997, buses used specifically to transport children under 16 years of age have been required to have seat belts, which must, at a minimum standard, be a two point seat belt (lap belt).⁶ Local authorities may sometimes contract with bus companies to transport children, and buses that are used mainly for transporting the general public are excluded from this provision.⁷ The requirement for seat belts in these buses depends upon the type of bus used, the number of seats in the bus, and the year that the bus was first used, with all buses first used from October 1, 2001, having to be fitted with seat belts.⁸ The Road Vehicles (Construction & Use) Regulations 1986 provide that seat belts must be provided in coaches, which are designed to carry 16 or more seated passengers and a driver, with a gross weight of 7.5 tonnes (approximately 8.27 US tons) or more and a maximum speed not in excess of 60 miles per hour, in the following circumstances⁹:

Belts in vehicles first used	Before Oct. 1, 1988	Oct. 1, 1988 to Sept. 30, 2001	From Oct. 1, 2001 (except vehicles designed for urban use with standing passengers)
Driver	A	C	D
Front passengers	B	C	D
Rear passengers in exposed seats	B	C	D
Other rear passengers	B	B	D

A – No belt required

B – No belt required unless passengers are children on an organised trip, in which case a forward facing seat with a minimum of a lap belt must be provided for each child carried

C – 2 point belt (lap) or 3 point belt (lap & diagonal) on forward facing seats

D – Inertia reel 3 point belt or retractable lap belt in all forward and rearward facing seats.¹⁰

Seat belts must be provided in minibuses, which are designed to carry eight or more people but less than 16, excluding the driver, in the following circumstances¹¹:

⁶ Road Vehicles (Construction and Use) Regulations 1986, SI 1986/1078, reg. 48A, <https://perma.cc/2XTV-GJLU> (as inserted by the Road Vehicles (Construction and Use) (Amendment) (No. 2) Regulations 1996, SI 1996/163, <https://perma.cc/WDK8-2BSM>).

⁷ Id. See also House of Commons Library, *Buses: Seat Belts*, SN/BT/542, at 2 (July 1, 2010), <https://perma.cc/2G95-ZT3D>.

⁸ *Guidance: Seat Belts in Minibuses, Coaches and Other Buses*, Department for Transport & the Driver & Vehicle Standards Agency (May 1, 2010), <https://perma.cc/Z2VJ-WCY5>.

⁹ Id. Table.

¹⁰ Id.

¹¹ Id.

School Bus Safety Requirements: England

Before Apr. 1, 1982, if over 2540kg or first used before Jan. 1, 1965	Apr. 1, 1982 in other case	Apr. 1, 1982 to Sept. 30, 1988	Oct. 1, 1988 to Sept. 9, 2001	From Oct. 1, 2001 (except vehicles designed for urban use with standing passengers)
A	C	C	D	F
B	C	C	D	F
B	B	B	E	F
B	B	B	B	F

A - No belt required.

B - No belt required unless there are 3 or more children on an organised trip, in which case a forward facing seat with a minimum of a lap belt must be provided for each child carried.

C - In vehicles with unladen weight of 2540kg or less and not capable of carrying more than 12 passengers - 3 point belt (lap & diagonal) or harness belt on forward facing seats. In vehicles with unladen weight of more than 2540kg or vehicles capable of carrying more than 12 passengers - no belt required unless there are 3 or more children on an organised trip, in which case a forward facing passenger seat with a minimum of a lap belt must be provided for each child carried.

D - In vehicles with a gross weight of 3,500kg or less - 3 point belt (lap and diagonal) or harness belt in forward facing seats. In vehicles with a gross weight of more than 3500kg - no belt required unless there are 3 or more children on an organised trip, in which case a forward facing passenger seat with a minimum of a lap belt must be provided for each child carried.

E - In vehicles with a gross weight of 3500kg or less - 2 point belt (lap) or 3 point belt (lap & diagonal) in forward facing seats. In vehicles with a gross weight of more than 3500kg - no belt required unless there are 3 or more children on an organised trip, in which case a forward facing passenger seat with a minimum of a lap belt must be provided for each child carried.

F - In vehicles with a gross weight of 3500kg or less - inertia reel 3 point belts in forward facing seats and inertia reel 3 point belts or retractable lap belts in rearward facing seats. In vehicles with a gross weight of more than 3500kg - inertia reel 3 point belts or retractable lap belt in forward and rearward facing seats.¹²

In all cases where seatbelts are required, the seat belt must meet standards set out in the Road Traffic Vehicles (Construction & Use) Regulations 1986, be correctly installed, in good working order, and display an approval mark.¹³

¹² Id.

¹³ Road Vehicles (Construction and Use) Regulations 1986, reg. 46.

B. Autonomous Emergency Braking Systems

Buses manufactured after September 1, 2018, must have advanced emergency braking systems that meet the technical provisions of Regulations (EU) 347/2012 or the technical provisions of UNECE Regulation 131.¹⁴

C. Event Data Recorder

There does not appear to be any requirement for an event data recorder to be placed in buses used to transport children to school or public service vehicles.

D. Electronic Stability Control Systems

Retained European Union law governs the use of electronic stability control systems in buses. Specifically, Regulation (EC) No 661/2009 provides that buses must “be equipped with an electronic stability control system meeting the requirements of this Regulation and its implementing measures.”¹⁵ In addition, order to pass an inspection, buses must have satisfactory evidence of successful “tilt tests” that is,

- An approval to UNECE Regulation 107.02.
- An approval to 2001/85EC.
- A witnessed (By an accepted authority) Stability Test Report to the criteria laid down in the form titled “Stability Test Report for a Public Service Vehicle to UNECE Regulation 107.02 Criteria”.
- A calculation report (based on a physical stability test), verified by an approval authority, and based on the method given in UNECE Regulation 107.02. or
- For complete single deck vehicles, an installed electronic stability function that has been approved to UN/ECE Regulation 13.11.¹⁶

E. Fire Suppression Systems

Regulation (EC) No 661/2009 sets out the requirement that “[m]aterials used in the construction of the inside of bus and coach bodywork shall, as far as possible, prevent or at least retard fire in order to allow occupants to evacuate the vehicle in the event of fire.”¹⁷ Buses and coaches made after October 2011 are subjected to harmonized international standards that have been developed

¹⁴ Driver & Vehicle Standards Agency, *Individual Vehicle Approval (IVA) Inspection Manual: Buses and Coaches (M2 & M3)* Part 65 (Oct. 2020), <https://perma.cc/YV92-X9LB>.

¹⁵ Regulation (EC) No 661/2009 of the European Parliament and of the Council of 13 July 2009 concerning type-approval requirements for the general safety of motor vehicles, their trailers and systems, components and separate technical units intended therefor, art. 12, <https://perma.cc/JL9M-JFJU>.

¹⁶ *Individual Vehicle Approval (IVA) Inspection Manual: Buses and Coaches (M2 & M3)*, supra note 14, Part 52A.

¹⁷ Regulation (EC) No 661/2009, art. 7(4).

through the United Nations Economic Commission for Europe.¹⁸ These standards include fire protection that cover:

- the engine compartment, including an automated fire suppression system
- electrical equipment and wiring
- batteries
- fire extinguishers
- fire detection systems
- material flammability¹⁹

Specifics on what measures are to be in place are contained in part 52E of the *Individual Vehicle Approval (IVA) Inspection Manual: Buses and Coaches*.²⁰

III. Crash Rates

The Department for Transport maintains statistics for reported road casualties in Great Britain. These statistics break down the type of casualty and vehicle type, including buses, but does not specify if the bus involved in the accident was used to transport students to school.²¹

¹⁸ Driver & Vehicle Standards Agency, *Research and Analysis: Investigation into Bus Fires Reported to DVSA from 2020 to 2022* ¶ 3 (July 20, 2023), <https://perma.cc/8Q4S-7LZ9>.

¹⁹ Id.

²⁰ Driver & Vehicle Standards Agency, *Individual Vehicle Approval (IVA) Inspection Manual: Buses and Coaches (M2 & M3)*, supra note 14, Part 52E.

²¹ Road Vehicles (Construction and Use) Regulations 1986, reg. 47. See also *Reported Road Casualties Great Britain, Annual Report: 2021*, Department for Transport (Sept. 29, 2022), <https://perma.cc/YH4D-US73>.

Iceland

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Iceland does not use designated school buses similar to those used in the United States to transport children to and from school but uses either ordinary buses or vans.¹ The equipment that must be present in all vehicles is regulated by Regulation No. 822/2004, with amendments.² School buses are not regulated separately, but special rules apply to vehicles for public use that transport more than eight persons.³ While seat belts are required in all vehicles, the rules only specify that they must be three-point in public service vehicles with a “maximum gross permitted weight of 3,500kg or less.”⁴ In addition, safety and protective equipment for children in automobiles must meet requirements in accordance with United Nations Economic Commission for Europe (UNECE) Regulation No. 16.⁵

While the regulation requires certain equipment such as escape hatches and tachographs to be installed on public service vehicles, automatic braking systems, electronic control systems, and event data recorders are not required.⁶

With respect to fire suppression, the rules provide that in a public service vehicle, which includes school buses, “the heat generator of a fuel-powered heating system must be in a fireproof chamber and must be constructed and installed as securely as possible.”⁷ In addition, materials that are flame resistant must be used in public service vehicles. Specifically,

[m]aterials used in interior compartments of a public service vehicle I, II and III shall be flame-resistant and fireproof. The fire resistance of materials in an interior compartment of a public service vehicle is deemed to meet requirements if the provisions in EC

¹ See, e.g., the school bus pictured at Fjallabygd, *Skólaakstur Veturinn 2016-2017* [School Bus Winter 2016-2017], <https://perma.cc/P7HU-AQMP>. For an example of a van used as school bus, see Þórgunnur Oddsdóttir, *Aka 80 Kílómetra í Skólann* [80-Mile Drive to School], RÚV (May 15, 2023), <https://perma.cc/RJF3-NHG8>. School buses are in high demand in rural Iceland but not in urban areas. Reportedly, less than 50 children used the school bus in the Reykjavik capital region in 2018. Larissa Kyzer, *Rural School Buses in High Demand, Iceland Rev.* (Nov. 5, 2018), <https://perma.cc/XDV6-MXEQ>.

² Reglugerð um gerð og búnað ökutækja. No. 822/2004 [Regulation on Vehicle Design and Equipment. No. 822/2004], as amended, <https://perma.cc/7FL8-5TCS>.

³ Id.

⁴ Id. § 24.12(1).

⁵ Regulation No. 822/2004 § 24.10(1), (3); Regulation No 16 of the Economic Commission for Europe of the United Nations (UN/ECE) – Uniform provisions concerning the approval of: I. safety-belts, restraint systems, child restraint systems and Isofix child restraint systems for occupants of power-driven vehicles II. vehicles equipped with safety-belts, restraint systems, child restraint systems and Isofix child restraint system (UNECE Regulation No. 16), 2007 O.J. L313/58, <https://perma.cc/2GKZ-HDUK>.

⁶ Regulation No. 822/2004, § 12.12(1).

⁷ Id. § 10.12(2).

Regulation No. 661/2009 and UNECE Regulation No. 55, with subsequent amendments, are satisfied.⁸

The use of safety and protection equipment in vehicles is regulated by Regulation No. 348/2007, which requires that seat belts be used in all vehicles except certain taxis and police cars, and in conditions where avalanches may occur.⁹ The regulation does not include specific provisions for vehicles used to transport school students.¹⁰

No official information on accidents for school buses has been located. There appear to have been no recent reports of fatal accidents involving school buses in Iceland.¹¹ However, minor accidents involving school buses have been reported in Icelandic media. For example, in 2019, a tourist created a head-on accident with a school bus while driving on a one-lane-bridge.¹² In 2021, Icelandic media reported that a school bus carrying three students slid off the road in icy conditions.¹³ During the same month, another vehicle used as a school bus reportedly slid off the road.¹⁴ There were no reports of any students being injured in connection with these accidents.¹⁵ The European Road Safety Observatory's *Road Safety Country Overview* from 2017 similarly indicates that school bus fatalities are not a problem in Iceland.¹⁶

⁸ Id. § 22.12(6).

⁹ Reglugerð nr. 348/2007, um notkun öryggis- og verndarbúnaðar í ökutækjum [Regulation No. 348/2007, on the use of safety and protection equipment in vehicles], <https://perma.cc/L6LE-G89U>.

¹⁰ Id.

¹¹ See, e.g., Eur. Comm'n, *Road Safety Country Overview: Iceland*, <https://perma.cc/4G3R-VALC>.

¹² Gréta Sigríður Einarsdóttir, *School Bus Collision on Single-Lane Bridge*, Iceland Rev. (Jan. 31, 2019), <https://perma.cc/2FUR-VCTJ>.

¹³ Rúnar Snær Reynisson, *Skólabíll út af í Skriðdal – Gagnrýna Sandsparnað* [School Bus Out in Skriðdalur – Critical Sand Saving], Fréttir (Jan. 7, 2020), <https://perma.cc/BK3S-U2X4>.

¹⁴ Id.

¹⁵ Id.; Sigríður Einarsdóttir, supra note 12.

¹⁶ Eur. Comm'n, supra note 11.

Mexico

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Mexico is a federal republic comprised of 31 states and Mexico City, which have authority to enact laws in their respective jurisdictions on traffic efficiency and safety matters for transportation vehicles, including the availability of safety seat belts and requiring a valid commercial driver's license for the vehicle's operator.¹

Accordingly, a number of Mexican states have enacted laws and regulations on school buses, such as the state of Queretaro, which published a regulation governing standards for school transportation vehicles, including the following safety measures:

- The vehicle must have a braking system that is adequate to protect the safety of the passengers. The pedal must be non-skid and have a free run without obstacles. Vehicles must also have a parking brake in good condition.
- The exhaust pipe, muffler and outlet pipe must be without ruptures, leakages and free from oxidation.
- Passenger Transport Vehicles must have fire extinguishers and first aid medical kits.
- The fuel tank must have a cap that seals correctly, and its hoses, pipes and connections must not have leaks and must be in good operating conditions.
- In general, other vehicle operating components (such as the suspension, steering system, wheels, tires and bumpers) must be in adequate mechanical conditions.²

Government data on accidents involving school buses could not be located. Notably, there have been media reports on accidents in Mexico involving school buses in recent years, in which the main cause has reportedly been speeding.³

¹ Constitución Política de los Estados Unidos Mexicanos, as amended, arts. 40, 41, 43, 116, Diario Oficial de la Federación (DOF) Feb. 5, 1917, <https://perma.cc/Q46M-6YRQ>; Ley General de Movilidad y Seguridad Vial, as amended, arts. 44, 49(I, IV), 54, DOF May 17, 2022, <https://perma.cc/H25Y-AUDV>.

² Instituto Queretano del Transporte, *Manual De Especificaciones Tecnicas Del Transporte Escolar*, <https://perma.cc/P43T-9SYR>.

³ See Ramón Ramírez, *Transporte escolar frena y provoca volcadura de auto en CdMx; hay ocho heridos*, Milenio (Jan. 20, 2023), <https://perma.cc/843K-9PY6>; *Autobús escolar se impacta contra 2 vehículos, en Iztapalapa; varias niñas resultaron lesionadas*, La Prensa (Nov. 23, 2022), <https://perma.cc/5Z4Y-BB3H>.

Russia

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One of the main documents establishing safety requirements in Russia for school buses and other transport vehicles used to carry children aged 18 months to 16 years is the State Standard No. 33552-2015.¹ The standard was adopted by the Interstate Metrology, Certification, and Standardization Council which is the regional standardization organization for the Commonwealth of Independent States. It entered into force on April 1, 2017.

The standard applies to all transport vehicles used to carry students to school and back home after classes in urban and rural areas, during organized school trips for educational and entertainment purposes, and for all other travel purposes involving the participation of children. Most of the time, school buses are used to transport students who live in remote villages and settlements to schools located outside of the students' residence area. In these cases, the responsibility for meeting these requirements belongs to the bus owner, which is usually the school or local territorial school administration. The same safety requirements apply to buses used by transportation and travel companies to carry children when they are contracted out to provide bus transportation for trips organized by schools.

The basic safety requirements for a school bus are the following:

- it must pass an annual technical inspection,
- it cannot be operated if technical problems are identified,
- it cannot be more than 10 years old,
- it must be equipped with locked luggage space for students' personal items,
- its seats for chaperones or other accompanying persons must be installed next to the exit,
- its first step in the entrance steps cannot be higher than 10 inches from the ground, and
- it must be equipped with the Russian Global Positioning System GLONASS to identify and locate the vehicle in case of an accident.²

School buses should also be equipped with four-point safety belts, a stop request button at every seat row, a public announcement system, route recording devices, devices preventing speeding in excess of the established speed limit of 60 kilometers per hour (approximately 40 miles per hour), heated outside mirrors, and monitors for the driver's time of work and rest periods. It is required that school buses have a medical emergency kit and at least two fire extinguishers. Buses transporting children should have visible safety signs clearly indicating that children are on

¹ Buses for Children Transportation. Technical Requirements and Testing Methods. State Standard No. 33552-2015 of July 18, 2016, <https://perma.cc/U5UN-DAHR> (in Russian).

² Id. § 2.3.

board.³ Since 2016, school buses in Russia as well as in other Member States of the Eurasian Customs Union (Armenia, Belarus, Kazakhstan, and Kyrgyzstan) are required to be of yellow color.⁴

School bus drivers must have at least three years of driving experience, including one year of driving buses of approximately the same size and capacity as the bus used for children's transportation. Drivers are prohibited from smoking and eating during driving and cannot use handheld phones.⁵

Special requirements are established for school-organized trips. Adults should accompany children on such trips, which must occur between 6 A.M. and 11 P.M. and have stops every three hours. A nurse or another health service worker should be present if a trip is longer than 12 hours. For children under 7 years of age, the duration of the trip cannot exceed four hours.⁶

Depending on the size of the bus and number of passenger seats, school buses are divided into three categories. Technical characteristics, such as weight, number of doors, location of the gas tank, clearance, etc., are established for each bus category separately.⁷

During the period between 2014 and 2021, 19 major accidents with school buses were reported. A major accident is one where more than 10 children needed medical assistance.⁸ While government statistics shows the number of accidents related to transportation of children is decreasing every year at the rate of approximately 10%, it says that out of about 800,000 children transportation requests reported to the national police in 2020, safety requirements were not met in 7,000 cases.⁹ Most of the accidents are attributed to the use of older vehicles and the inability of the travel industry to supply modern buses for organized school trips.¹⁰

³ Id. § 2.2.

⁴ Technical Regulation of the Customs Union on Safety of Wheeled Transport Vehicles No. 018/2011, Attachment 6, § 1.16, <https://perma.cc/S25U-4ZXJ> (in Russian).

⁵ Ministry of Transportation Order No. 282 of July 31, 2020, on Professional and Qualification Requirements for Drivers, <https://perma.cc/2PGG-DR3L> (in Russian).

⁶ Id.

⁷ State Standard No. 33552-2015 § 2.5.

⁸ *Serious Accidents with Children in Russia in 2014-2021*, Ria.ru (Dec. 18, 2021), <https://perma.cc/STE9-VZ6B> (in Russian).

⁹ Asia Kuznetsova, *No Child Died in January Being Transported by School Buses*, Kp.ru (Feb. 18, 2020), <https://perma.cc/MN8F-D8NJ> (in Russian).

¹⁰ *The Last Ticket: Children Are More Likely to Die in Accidents with Old Buses*, Lenta.ru (Nov. 9, 2017), <https://perma.cc/ZLK6-947K> (in Russian).

United Arab Emirates

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SUMMARY The Roads and Transportation Authority of the Emirate of Dubai of the United Arab Emirates is the government authority setting the safety standards for school buses. The director of the transportation authority has issued Administrative Decree No. 196 of 2015 regulating school transport in Dubai.

Decree No. 196 of 2015 identifies a number of safety standards concerning school buses. Those standards include the following: life span of the school bus used to transport students on daily basis, safety instructions for the exterior of the school bus, interior safety standards of the school bus, and other safety equipment that must be fitted on the bus to ensure the safety of the students.

Passenger seats must be fitted with two-point safety belts, while the school bus driver's seat must be fitted with a three-point belt. Similarly, all buses transporting children to and from child care centers and children in kindergarten must be fitted with three-point seat belts for all passenger seats.

I. Background

A. Crash Rate Data

While there appears to be no official data on crashes involving school buses, according to the Gulf News there were nine accidents involving school buses between 2009 and 2019 in the United Arab Emirates.¹

B. Administrative Decree Regulating School Bus Transport

The Roads and Transportation Authority of the Emirate of Dubai of the United Arab Emirates is the government authority setting the safety standards for school buses.² In 2015, the director of the Roads and Transportation Authority issued Administrative Decree No. 196 regulating school bus transport in Dubai.³

¹ Suchitra Bajpai Chaudhary et al., *Dubai School Bus Crash: All Students Discharged Except One*, Gulf News, (Sept. 9, 2019), <https://perma.cc/57GA-C23S>.

² Ordinance No 2 of 2008 regulating School Transport in the Emirate of Dubai, issued on April 17, 2008, by the Dubai Government Executive Council, posted on the official website of the Supreme Legislative Committee of the Government of Dubai of the United Arab Emirates, <https://perma.cc/V2B6-MX9G> (in Arabic).

³ Decree No. 196 of 2015, issued on Mar. 26, 2015, posted on the official website of the Supreme Legislative Committee of the Government of Dubai of the United Arab Emirates, <https://perma.cc/XA7V-KRJA> (in Arabic); see also Gov't Dubai, Roads & Transport Auth., United Arab Emirates, *Guiding Manual of School Transport in the Emirate of Dubai*, <https://perma.cc/AL35-CJ5M>.

II. School Bus Safety Standards

A. School Bus Life Span

The lifespan of a school bus must not exceed 15 years as of the date of manufacturing, according to Decree No. 196 of 2015.⁴

B. Safety Requirements for School Bus Exteriors

Decree No. 196 of 2015 requires that a school bus be fitted with an electronic “Stop” road sign on the exterior side of the bus. The sign must be located directly behind the driver’s door so that the word “Stop” is displayed outwards electronically. The school bus must have two red lights flashing every time it stops to drop off students.⁵

The decree mandates that a school bus must be fitted with a light indicator system that goes off every time the bus stops to drop students off. The bus must have a dual red-light indicator on the front and rear sides. Additionally, it must be fitted with a yellow light indicator on the front and rear sides.⁶

All school buses must display a sign that says “School Bus” on the right front side and the left rear side.⁷ The decree prohibits school bus windows from having any type of internal or external iron bars.⁸ The bus number must be written on the right front side as well as the left rear side of the bus.⁹ Finally, the mirrors fitted on the bus must display all sides, with no blind sides existing.¹⁰

C. Safety Requirements for School Bus Interiors

Each school bus must be fitted with a cooling system in case of hot temperatures.¹¹ A bags compartment on the school bus must not obstruct students’ movement. Students’ bags must be stored in a specific way to prevent them from falling on the students whether in an accident or during the normal movement of the bus.¹²

⁴ Decree No. 196 of 2015, art. 6(c)(4).

⁵ Id. art. 6(a)(4).

⁶ Id. art. 6(a)(5).

⁷ Id. art 6(a)(6).

⁸ Id. art. 6(a)(8).

⁹ Id. art. 6(a)(9).

¹⁰ Id. art. 6(a)(10).

¹¹ Id. art. 6(b)(4).

¹² Id. art. 6(b)(5).

The door opening and closing mechanism must be controlled by the bus driver only.¹³ The front and rear two doors of the bus must be fitted with hand rails to assist students in the boarding process.¹⁴

The floor of the bus must be covered with a specific rubber that is non-slippery and nonflammable.¹⁵ All seats inside the bus must be padded on all sides and made from shock-absorbing and fireproof pads.¹⁶

The bus must have emergency exits proportionate to the number of students on the bus. There must be clearly marked exit signs that the students can follow to exit the bus in case of an emergency. The emergency exits must not be blocked at any time.¹⁷ The emergency exits must be located on the right and left sides of the school bus as well as the back. In addition, there must be emergency exits located on the ceiling of the bus through hatches.¹⁸

D. Other Safety Tools Fitted on the Bus

A school bus must have a number of first aid kits that is proportionate to the number of seats.¹⁹ The bus must also be fitted with a manual fire extinguisher located near the bus driver.²⁰

The bus must have two-point safety belts fitted to all passenger seats. The driver's seat must be fitted with a three-point safety belt.²¹

The school bus must have an electronic tracking system device that allows the Transportation Authority and the school system operating the bus to be aware of its location all times.²² Moreover, the bus must be fitted with an electronic fire extinguishing system inside the engine compartment.²³

All buses transporting children to and from child care centers and children in kindergarten must be fitted with three-point seat belts for all passenger seats. The buses transporting children in

¹³ Id. art. 6(b)(8).

¹⁴ Id. art. 6(b)(6).

¹⁵ Id. art. 6(b)(7).

¹⁶ Id. art. 7(2).

¹⁷ Id. art. 6(c)(4).

¹⁸ Id. art. 7(3).

¹⁹ Id. art. 6(c)(2).

²⁰ Id. art. 6(c)(3).

²¹ Id. art. 6(c)(6).

²² Id. art. 6(c)(8).

²³ Id. art. 7(4).

kindergarten must also have a child seat anchorage system known as the Universal Anchorage System.²⁴

It appears that Decree No. 196 of 2015 does not require school buses to be fitted with an Electronic Stability Control System, event data recorder, or an automatic emergency braking system.

²⁴ Id. art. 8.

Table of Primary Sources

Jurisdiction	Type of Law	Citation	URL
Australia	Regulation	Vehicle Standard (Australian Design Rule 97/00 – Advanced Emergency Braking for Omnibuses, and Medium and Heavy Goods Vehicles) 2022 (Cth)	https://perma.cc/RKC9-CWUK
		Vehicle Standard (Australian Design Rule 35/07 – Commercial Vehicle Brake Systems) 2022 (Cth)	https://perma.cc/PDD8-V2EX
Brazil	Statute	Código de Trânsito Brasileiro - Lei No. 9.503, de 23 de Setembro de 1997	https://perma.cc/ZSM5-C48H
	Resolution	Resolução CONTRAN No. 919, de 28 de Março de 2022	https://perma.cc/93Z6-PJ8K
		Resolução CONTRAN No. 959, de 17 de Maio de 2022	https://perma.cc/G8KW-J2B4
		Resolução CONTRAN No. 993, de 15 de Junho de 2023	https://perma.cc/ZH5P-LVRA
Canada	Statute	Motor Vehicle Safety Act, S.C. 1993, c. 16	https://perma.cc/W2P6-KBFC
	Regulation	Motor Vehicle Safety Regulations C.R.C., c. 1038	https://perma.cc/NY7D-HAY5
	Compulsory Standard	Safety Standards for School Buses	https://perma.cc/VSN6-BZUK
China	Regulation	Regulations of School Bus Safety (promulgated by the State Council on Apr. 5, 2012)	https://perma.cc/5UJ9-EZDY

School Bus Safety Requirements: Table of Primary Sources

Jurisdiction	Type of Law	Citation	URL
	Compulsory Standard	General Administration of Quality Supervision Inspection and Quarantine & Standardization Administration of China, GB 24407 – 2012: The Safety Technique Specifications of Special School Buses (Apr. 10, 2012)	https://perma.cc/RED5-ADS3
England	Statute	Education Act 1996, c. 56	https://perma.cc/DF5W-X28X
	Regulation	Road Vehicles (Construction and Use) Regulations 1986, SI 1986/1078	https://perma.cc/2XTV-GJLU
		Regulation (EC) No 661/2009 of the European Parliament and of the Council of 13 July 2009 concerning type-approval requirements for the general safety of motor vehicles, their trailers and systems, components and separate technical units intended therefor	https://perma.cc/JL9M-JFJU
Iceland	Regulation	Reglugerð um gerð og búnað ökutækja. No. 822/2004 [Regulation on Vehicle Design and Equipment. No. 822/2004], as amended	https://perma.cc/7FL8-5TCS
		Reglugerð nr. 348/2007, um notkun öryggis- og verndarbúnaðar I ökutækjum [Regulation No. 348/2007, on the use of safety and protection equipment in vehicles]	https://perma.cc/L6LE-G89U
Mexico	Statute	Ley General de Movilidad y Seguridad Vial, as amended, Diario Oficial de la Federacion, May 17, 2022	https://perma.cc/H25Y-AUDV
Russia	Regulation	Technical Requirements and Testing Methods, State Standard No. 3352-2015 of July 18, 2016	https://perma.cc/U5UN-DAHR
United Arab Emirates	Decree	Decree No. 196 of 2015, Mar. 26, 2015	https://perma.cc/XA7V-KRJA